

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 26-02

NANCY PRIOR,
COMPLAINANT

v.

AMOOV GROUP, FREIGHTLEAD LLC,
AIR 7 SEAS TRANSPORT LOGISTICS, INC.
RESPONDENTS.

RESPONDENT AIR 7 SEAS' MOTION FOR LEAVE
TO FILE OUT OF TIME

Pursuant to 46 C.F.R. § 502.102, Respondent, Air 7 Seas Transport Logistics, Inc. ("Air 7 Seas") files this motion for leave to file Respondent's Reply and Opposition to Complainant's Motion to Compel Discovery Response – Request for Production of Documents No. 5 on or before Friday, June 26, 2026. Despite counsel's best efforts, Respondent, Air 7 Seas was unable to meet the deadline to file their Reply and Opposition to Complainant's Motion to Compel Air 7 Seas' Discovery Response – Request for Production of Documents No. 5. Counsel's principal contact at Air 7 Seas was suffering from illness. In addition, Counsel's brother was suffering from serious illness requiring counsel's attention and visitation in the State of Montana.

Also, the factual matters arising from Complainant failing to pay its NVOCC for their charges created a significant amount of paperwork running between Complainant, the NVOCC, the Ground Transportation Agent, the Warehouse and Respondent. There is and continues to be significant work in the generation, review and recovery of several emails, documents and

invoices. There has been and is significant effort in the location, generation, review and recovery of several emails, documents and invoices.

Complainant's Request for Production No. 5 resulted in Respondent searching for the invoice it sent months before and then finding an iteration of that invoice that was \$65 less than the demand. The invoice including the \$65 and totaling \$22,850.00 has been located and then services itemized along with the amount to be paid for each service. That document speaks for itself and is attached hereto as Exhibit 1. However, several questions arose that needed answering concerning why Complainant was requesting that our client pay her when our client had not been paid by AMOOV and AMOOV had not been paid by Complainant.

As a result of the payment situation, the downstream vendors placed holds on the goods to encourage payment – AMOOV included. AMOOV has not been reachable for well over a month. Though unbeknownst to Respondent, AMOOV at that particular time it is believed was contemplating closing its business. In my correspondence to Complainant, I indicated there were questions remaining and information I did not understand in terms of relationships. I explained to Complainant that I was not ready to release everything until I fully understood what had occurred.

There are but a few questions remaining for which Respondent is searching materials for further documents or emails. Those documents and answers are forthcoming and we respectfully request until Friday, June 26, 2026 to file Respondent, Air 7 Seas' Reply and Opposition to Complainant, Nancy Prior's Motion to Compel Discovery Response of Respondent, Air 7 Seas. Respondent objects to Complainant's Motion to Compel as premature because consistently, except for some time during illness and to some degree even during illness, this Respondent and its lawyer were gathering and/or attempting to gather information, study occurrences and so advised Complainant.

Respondent, Air 7 Seas does not believe any prejudice will result to any party from this delay. We have conferred with Complainant, Nancy Prior, Pro Se some days ago requesting the Motion be withdrawn as the motion was filed prematurely since work was underway to answer

Complainant's Discovery RFP No. 5. Respondent refused, stating the following: "Complainant declines to withdraw the motion and has not agreed to any extension of discovery deadlines or any informal resolution outside the Commission's rules and procedures". We also wrote to Complainant today's date indicating our intent to file this Motion and asking her if she had issue with the motion being filed. As of this time, 6:00PM EST, Complainant has not responded to that correspondence and we file this request as response remains outstanding.

As of this date, our client is searching for additional materials for a complete explanation of Respondent's position with respect to Complainant's Discovery Request to Air 7 Seas – Request for Production of Document No. 5 which then caused further question and additional work and research, especially as AMOOV has not been responding ostensibly because AMOOV is out of business.

DATED: June 18, 2026

Respectfully submitted,



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